

Court No. - 29

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Surya Prakash Kesarwani, J.

Sri Baleshwar Chaturvedi, the learned counsel for respondent Nos.4 and 5 shall file a counter affidavit within three weeks.

List for admission thereafter.

Prima facie the electricity connection in the name of the petitioner's father was permanently disconnected on 17.10.2005, inspite of which recovery certificate has been issued under Section 3 of the U. P. Government Electrical Undertakings (Dues Recovery) Act 1958 for the same connection.

In the light of the aforesaid, no recovery shall be made from the petitioner till the next date of listing.

Order Date :- 2.9.2016

AKJ

(Surya Prakash Kesarwani, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Prabhat Chandra Tripathi, J.

Three weeks further time is allowed to the respondents to file counter affidavit.

List thereafter.

Interim order, if any, is extended till the next date of listing.

Order Date :- 27.9.2016

Atmesh

(Prabhat Chandra Tripathi, J.)

(Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

As prayed for by learned counsel for the respondents, list this petition on 20 February 2017 to enable him to file the counter affidavit. Interim order shall continue till the next date of listing.

Order Date :- 13.1.2017

sartaj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

List this petition on 20 March 2017.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 20.2.2017

Akram

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

Learned counsel for the respondents prays for and is granted two weeks' further time to file counter affidavit.

List this petition on 18 April 2014.

Order Date :- 20.3.2017

vkj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 37

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Sri Baleshwar Chaturvedi, prays for two weeks further time to file a counter affidavit. The time had been granted earlier on 20.3.2017. No further time shall be granted to the respondent.

The matter shall be listed immediately after two weeks.

Interim order dated 2.9.2016 shall continue till then.

Order Date :- 4.9.2017

Dev/-

Court No. - 37

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Learned counsel for the petitioner states that he has been served with a counter affidavit. He may file a reply to the same.

List in the next cause list.

Interim order, if any, is extended till the next date of listing.

Order Date :- 19.9.2017

Sumit S

Court No. - 1

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Govind Mathur, J.

Hon'ble Ashok Kumar, J.

The case is passed over for the day on the illness slip given on behalf of Sri Sanjay Kumar Jain, learned counsel for the petitioner.

Let this petition for writ be listed in the next cause list.

Order Date :- 15.12.2017

Shubham

(Ashok Kumar, J.) (Govind Mathur, J.)

Court No. - 21

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Passed over on the illness-slip of Shri Sanjay Kumar Jain, learned counsel for the petitioner.

Order Date :- 2.1.2018

OP

Court No. - 40

Case :- WRIT - C No. - 41405 of 2016

Petitioner :- Siya Ram

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Jain, Babu Lal Ram, Sanjay Kumar Jain

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner and Sri A.N.Singh, Advocate, holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondents.

A sum of Rs.1,10,025/- is sought to be recovered from the petitioner through the impugned recovery notice-cum-citation dated 27.06.2016 from the petitioner in respect of a connection which the petitioner submits had already been disconnected in the year 1993 and the permanent disconnection took place in the year 2005.

The petitioner contends that no amount is due nor has he utilized any such electricity, consumption charges whereof can be realized from the petitioner.

From the facts stated in the writ petition it appears that the petitioner had made certain deposits in the year 1999 and disconnection had taken place in the year 2005. In the aforesaid background as to whether the petitioner did continue to utilize the electricity or whether he is liable to pay any consumption charges for the period upto the date of permanent disconnection is a question of fact which can be determined by the Executive Engineer as a billing dispute in terms of Clause 6.5 of the Electricity Supply Code, 2005. If the petitioner is still aggrieved, he can also approach the Consumer Grievance

Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005.

In the aforesaid circumstances, the petitioner may approach the Executive Engineer-respondent no.4 along with a certified copy of this order and the respondent no.4 shall proceed to determine the dispute and pass an appropriate order within six weeks from today.

The petitioner shall file this order before the Executive Engineer within 10 days from today.

The impugned recovery proceedings under the citation dated 27.06.2016 shall proceed only after the determination is made by the Executive Engineer provided any dues are found to be recoverable from the petitioner in accordance with law.

The writ petition is disposed of with the said direction.

Order Date :- 24.4.2018

KA